

TAB 8



Board of Education Report

File #: Rep-041-25/26, **Version:** 1**Agenda Date:** 9/16/2025**In Control:** Environmental Health & Safety

Adoption of the Negative Declaration for the Fairfax High School Major Modernization Project

Office of Environmental Health & Safety

Brief Description:

(Adoption of the Negative Declaration for the Fairfax High School Major Modernization Project) Recommends adoption of the Negative Declaration for the Fairfax High School (Board District 4, Region West) Major Modernization Project. prepared in compliance with the California Environmental Quality Act (CEQA; Public Resources Code §21000 et seq.) and State CEQA Guidelines (California Code of Regulations, Title 14, Division 6, Chapter 3 §15000 et seq.).

Action Proposed:

Review and adopt the Negative Declaration (ND) for the proposed Fairfax High School Major Modernization Project (Project) prepared in compliance with the California Environmental Quality Act (CEQA; Public Resources Code §21000 et seq.) and State CEQA Guidelines (California Code of Regulations, Title 14, Division 6, Chapter 3 §15000 et seq.). An initial Study/Negative Declaration was prepared for the Fairfax High School Major Modernization Project. Environmental review of the Project found that there would be no significant impacts as a result of construction and operation of the Project.

Background:

On October 12, 2021, the Los Angeles Unified School District Board of Education (Board) approved the project definition for site due diligence, planning, and feasibility activities necessary at Fairfax High School (Fairfax HS or Campus) for a major modernization project (Board Report No. 85-21/22). Subsequently, on January 14, 2025, the Board approved the Design-Build Contract Award to Pinner Construction Co., Inc. in partnership with DLR Group Inc. for the major modernization project (Board Report No. 100-24/25) with a contract value of \$142,998,000.

The proposed Project is located on a 23.63-acre school campus at 7850 Melrose Avenue within the City of Los Angeles (Board District 4, Region West). Fairfax High School (School) originally opened in 1924. All existing buildings were constructed between 1923 and 2011. As of the 2024-2025 Electronic Capacity Assessment Review (E-CAR), the school served approximately 1,500 students in grades 9 through 12.

The proposed Project includes the construction of a new gymnasium, five specialty classrooms, outdoor physical education courts, and maintenance and operations (M&O) facilities. The new two-story gymnasium building includes team rooms and locker rooms; a public entrance and lobby providing access to the building from the west parking area along Fairfax Avenue; and five new classrooms that will host Ceramics, Drama, Instrumental Music, Sports Medicine, and Dance classes. The outdoor physical education courts will be comprised of basketball/volleyball courts, adjacent areas with trees and seating.

Demolition activities will include the removal of the Shop Building, Gymnasium, M&O Building, Ticket Office, and Relocatable Sanitary Building, including foundations and below-grade and above-grade utility

infrastructure associated with these buildings and structures. Interim facilities will be installed to allow the School to remain operational and minimize impacts during construction.

Additional improvements encompass exterior painting of all remaining buildings to provide a uniform appearance; associated landscape, hardscape, parking improvements, and related infrastructure upgrades including a new electrical transformer. The site is not on any hazardous waste lists under Section 65962.5 of the Government Code. A Preliminary Environmental Assessment-Equivalent (PEA-E) was prepared for the proposed Project in accordance with Department of Toxic Substances Control (DTSC) guidelines. The PEA-E did not identify any hazardous substances in the soil, and No Further Action was recommended for the site assessment investigation. However, the site is in a designated City of Los Angeles Methane Zone, and a methane assessment has been performed. Methane monitoring and mitigation components, as required by the City of Los Angeles, will be incorporated as a part of the project design.

The District's Office of Environmental Health & Safety (OEHS) evaluated the proposed Project to determine its potential impact on the environment in accordance with CEQA, Public Resources Code §21000, et seq., and State CEQA Guidelines, Title 14 California Code of Regulations §15000 et seq.

Environmental review of the Project found that there would be no significant impacts as a result of construction and operation of the Project with the implementation of LAUSD's Standard Conditions of Approval. This evaluation, as documented in the Initial Study (IS), resulted in the preparation of a ND (State Clearinghouse Number 2025050380). The District circulated the IS/ND for a 30-day public review period from May 7, 2025, to June 6, 2025. Copies of the IS/ND and PEA-E were available for review electronically on the OEHS website and on the State Clearinghouse website and printed copies were made available for public review at OEHS District Headquarters at Beaudry and at Fairfax High School.

The District posted the Notice of Intent to Adopt a Negative Declaration (NOI) on the OEHS website during the public review period, mailed the NOI to all owner/occupants located within a 0.25-mile radius of the Project site, to parents/guardians of students, and published the NOI in two local newspapers (Daily News and La Opinión). The District filed the NOI with the Los Angeles County Clerk and with the State Clearinghouse for distribution to potentially affected state agencies, local agencies, tribal agencies pursuant to AB 52, and known interested parties.

At the end of the public review period, the District received comment letters from two agencies and verbal comments from individuals during the community meeting. All letters and verbal comments were responded to by the District and are included in the attached Responses to Comments (RTC). The requirements set forth in the CEQA Guidelines Section 15073.5 regarding recirculation are not met.

Expected Outcomes:

Staff anticipates that the Board will review and make a determination on the attached Resolution to adopt the ND pursuant to CEQA and State CEQA Guidelines. This action is required for the Board to consider approval of the Project.

Board Options and Consequences:

A "Yes" vote to adopt the Negative Declaration would enable the Board to consider approval of the Project.

A "No" vote to adopt the Negative Declaration would prevent the Board from approving the proposed Project, and the proposed Project could not proceed into construction.

Policy Implications:

This action does not change District policy. This action helps facilitate the Facilities Services Division Strategic Execution Plan and supports the goals and objectives of the School Upgrade Program (SUP). On August 24, 2021, the Board adopted an update to the SUP to integrate Measure RR funding and priorities into its operational framework and approved the Measure RR Implementation Plan (Implementation Plan) to help guide the identification of sites and development of project proposals (Board Report No. 027-21/22). The Implementation Plan included, among other things, the development of seven major modernization projects, one in each Board District and the Project is in Board District 4.

Budget Impact:

This action does not have a budget impact.

Student Impact:

The proposed Project, once completed, will help ensure that the students attending the school are provided with a safe and healthy environment, and up-to-date facilities that promote learning.

Issues and Analysis:

In 2016, the Board authorized a proposal by Arts Fairfax to donate a new 3,300 square foot art gallery and classroom building (Gallery Building) at the School, consisting of an exhibition/classroom space, office space, conference room, storage, and restrooms. Additionally, the Board authorized the inclusion of the Gallery Building design in the construction bid documents for the Project as an add alternate. The Gallery Building scope of work was included as part of the CEQA analysis for potential environmental impacts and as referenced in the CEQA documents (IS/ND). Construction of the Gallery Building will only proceed if additional funding becomes available through future external and/or District sources.

Environmental review of the proposed Project found that, with the incorporation of Los Angeles Unified's Standard Conditions and Approvals, Project Design Features, as well as all applicable state, federal, and local regulations, there would be no significant impacts as a result of the Project.

The District is the "Lead Agency" as defined in the State CEQA Guidelines §§15050-15053, and the Board shall review and consider the Negative Declaration and its supporting documents and comments.

Attachments:

Attachment A: Resolution of the Los Angeles Unified School District Board Adopting the Negative Declaration for the Fairfax High School Major Modernization Project

Attachment B: Initial Study/ Negative Declaration

Due to the file size, Attachment B please click here to view

<https://media.edlio.net/4c6d677b/8ce4263a/af5ce9b5/29852b5aea8b40ab90261106299a720e?>

Attachment C: Initial Study/ Negative Declaration Appendices

Due to the file size, Attachment C, please click here to view [the CEQA website](#)

[<https://media.edlio.net/4c6d677b/bb1fc79c/2c34dd93/fa849c484e764a1c9cf9da3aa43133cf?](https://media.edlio.net/4c6d677b/bb1fc79c/2c34dd93/fa849c484e764a1c9cf9da3aa43133cf?)

Attachment D: Responses to Comments

File #: Rep-041-25/26, **Version:** 1**Agenda Date:** 9/16/2025**In Control:** Environmental Health & Safety

Linked materials of previously adopted Board reports referenced in the background and policy implications sections:

- Adopted October 12, 2021 - Board Report No. 85-21/22
<https://drive.google.com/file/d/109Z9T-RDcddHx-XolO25THJl8J7PN49Z/view>
<[https://nam11.safelinks.protection.outlook.com/?url=https%3A%2F%2Fdrive.google.com%2Ffile%](https://nam11.safelinks.protection.outlook.com/?url=https%3A%2F%2Fdrive.google.com%2Ffile%2F109Z9T-RDcddHx-XolO25THJl8J7PN49Z/view)
- Adopted January 14, 2025 - Board Report No. 100-24/25
<https://drive.google.com/file/d/1YkceVOjefpuRtrADj8rX1tL7qJ1FszdR/view>
<[https://nam11.safelinks.protection.outlook.com/?url=https%3A%2F%2Fdrive.google.com%2Ffile%](https://nam11.safelinks.protection.outlook.com/?url=https%3A%2F%2Fdrive.google.com%2Ffile%2F1YkceVOjefpuRtrADj8rX1tL7qJ1FszdR/view)
- Adopted August 24, 2021 - Board Report No. 27-21/22
<https://drive.google.com/file/d/1KPIII4tDrqyozYHPIwaFOcJVzHoUYOOF/view>
<[https://nam11.safelinks.protection.outlook.com/?url=https%3A%2F%2Fdrive.google.com%2Ffile%](https://nam11.safelinks.protection.outlook.com/?url=https%3A%2F%2Fdrive.google.com%2Ffile%2F1KPIII4tDrqyozYHPIwaFOcJVzHoUYOOF/view)

Submitted:

08/22/25

File #: Rep-041-25/26, Version: 1
In Control: Environmental Health & Safety

Agenda Date: 9/16/2025

RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED & PRESENTED BY:


JAIME G. TORRENS
Senior Advisor to the Superintendent
Office of the Superintendent

REVIEWED BY:


DEVORA NAVERA REED
General Counsel

APPROVED & PRESENTED BY:


CARLOS A. TORRES
Director
Office of Environmental Health & Safety

☒ Approved as to form.

REVIEWED BY:


KURT JOHN
Deputy Chief Financial Officer

☒ Approved as to budget impact statement.

RESOLUTION OF THE LOS ANGELES UNIFIED SCHOOL DISTRICT BOARD OF EDUCATION ADOPTING THE NEGATIVE DECLARATION FOR THE FAIRFAX HIGH SCHOOL MAJOR MODERNIZATION PROJECT

Whereas, on November 3, 2020, voters in Los Angeles Unified School District (Los Angeles Unified or District) passed Measure RR (School Upgrades and Safety Measure) as a funding mechanism to help address the significant and unfunded needs of LAUSD public school facilities; and

Whereas, under Measure RR and in conjunction with other, ongoing LAUSD Facilities programs, the District is proposing to upgrade, modernize, and replace aging and deteriorating District school facilities; update technology; and address District school facilities inequities to provide students with physically and environmentally safe, secure, and updated school facilities that support 21st century learning at hundreds of neighborhood schools District-wide; and

Whereas, on October 12, 2021, the Board approved project definition for the due diligence, planning, and feasibility activities necessary to propose scope recommendations, budget, and schedule for the proposed Project. Subsequently, on January 14, 2025, the Board approved the Design-Build Contract Award; and

Whereas, the proposed Project is located on a 23.63-acre school campus at 7850 Melrose Avenue within the City of Los Angeles (Board District 4, Region West). Fairfax High School (School) originally opened in 1924. All existing buildings were constructed between 1923 and 2011. As of the 2024-2025 Electronic Capacity Assessment Review (E-CAR), the school served approximately 1,500 students in grades 9 through 12; and

Whereas, proposed Project includes the construction of a new gymnasium, five specialty classrooms, outdoor physical education courts, and maintenance and operations (M&O) facilities. The new two-story gymnasium building includes team rooms and locker rooms; a public entrance and lobby providing access to the building from the west parking area along Fairfax Avenue; and five new classrooms that will host Ceramics, Drama, Instrumental Music, Sports Medicine, and Dance classes. The outdoor physical education courts will be comprised of basketball/volleyball courts, adjacent areas with trees and seating; and

Whereas, demolition activities will include the removal of the Shop Building, Gymnasium, M&O Building, Ticket Office, and Relocatable Sanitary Building, including foundations and below-grade and above-grade utility infrastructure associated with these buildings and structures. Interim facilities will be installed to allow the School to remain operational and minimize impacts during construction; and

Whereas, additional improvements encompass exterior painting of all remaining buildings to provide a uniform appearance; associated landscape, hardscape, parking improvements, and related infrastructure upgrades including a new electrical transformer; and

Whereas, the site is not on any hazardous waste lists under Section 65962.5 of the Government Code. A Preliminary Environmental Assessment-Equivalent (PEA-E) was prepared for the proposed Project in

accordance with Department of Toxic Substances Control (DTSC) guidelines. The PEA-E did not identify any hazardous substances in the soil and No Further Action was recommended for the site assessment investigation. However, the site is in a designated City of Los Angeles Methane Zone and a methane assessment has been performed. Methane monitoring and mitigation components, as required by the City of Los Angeles, will be incorporated as a part of the project design.

Whereas, the District's Office of Environmental Health & Safety (OEHS) evaluated the proposed Project to determine its potential impacts on the environment in accordance with CEQA, Public Resources Code §21000, et seq., and State CEQA Guidelines, Title 14 California Code of Regulations §15000 et seq.; and

Whereas, environmental review of the proposed Project as documented in the Initial Study (IS), resulted in the preparation of a Negative Declaration (ND)(State Clearinghouse Number 2025050380), which found that the Project would have no significant effects on the environment as a result of construction and operation of the Project with the implementation of LAUSD's Standard Conditions of Approval; and

Whereas, on May 7, 2025, the District filed the Notice of Intent to Adopt a Negative Declaration (NOI) pursuant to the requirements of CEQA, Public Resources Code §21000, et seq., and State CEQA Guidelines, Title 14 California Code of Regulations §15000 et seq.; and

Whereas, from May 7, 2025, to June 6, 2025, the District circulated the IS/ND and PEA-E for public review with electronic copies on the OEHS and State Clearinghouse websites and printed copies at the OEHS District Headquarters and at Fairfax High School; and

Whereas, the District responded to written and verbal comments received during the public review period and at a community meeting in the Responses to Comments; and

Whereas, the District is the "Lead Agency" as defined in State CEQA Guidelines §§15050-15053, and the Board shall review and consider the ND and its supporting documents and comments.

Resolved, that the Board finds that:

The Project may not have an adverse effect on fish and wildlife, as referenced in §711.2 of the Fish and Game Code; and

The presumption of adverse effect set forth in California Code of Regulations, Title 14, §753.5(d) does not apply; and be it

Resolved further, that the Board hereby:

1. Finds that the ND was completed in compliance with CEQA and State CEQA Guidelines, as amended; and
2. Finds that the ND reflects the District's independent judgment and analysis; and

3. Finds that the Board reviewed and considered the information in the ND before making a decision to approve the Project; and
4. Adopts the ND; and be it

Resolved further, that the Board specifies that the record of proceedings on which the Board's decision is based is located at the Los Angeles Unified School District, Office of Environmental Health and Safety, 333 South Beaudry Avenue, 21st Floor, Los Angeles, California, and the custodian of the record of proceedings is the Office of Environmental Health and Safety.

PASSED, APPROVED AND ADOPTED this 16th day of September 2025, by the following vote:

AYES:

NOES:

ABSENT:

ABSTAIN:

Michael McLean
Executive Officer of the Board of Education

Date

July 2025 | Response to Comments
State Clearinghouse No. 2025050380
Fairfax High School
Major Modernization Project



Prepared for:

Los Angeles Unified School District
Office of Environmental Health and Safety
333 South Beaudry Avenue, 21st Floor
Los Angeles, California 90017
Contact: Christy Wong, CEQA Project Manager
213.241.3394

Prepared by:

Meridian Consultants
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OEHS
OFFICE OF ENVIRONMENTAL HEALTH & SAFETY

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1. Introduction

1.1 FAIRFAX HIGH SCHOOL MAJOR MODERNIZATION PROJECT

The Los Angeles Unified School District (LAUSD or District) proposes to complete a major modernization project at the Fairfax High School (HS) Campus to provide facilities that are safe, secure, and aligned with the instructional program (proposed Project or Project). The proposed Project includes demolition of the existing Shop Building, Gymnasium, Utility Building, Ticket Office, and Relocatable Sanitary Building, and the construction of a new gymnasium, specialty classrooms, outdoor physical education courts, maintenance and operations facilities, and an Art Gallery Building. The proposed Project also includes exterior painting of existing buildings; various landscape and hardscape improvements; parking improvements; infrastructure upgrades including, but not limited to, sanitary sewer, water, storm water, and electrical utilities; and accessibility upgrades as required.

1.2 INITIAL STUDY/NEGATIVE DECLARATION

An Initial Study (IS) was prepared for the proposed Project and concluded that there will be less-than-significant impacts on the environment with the incorporation of LAUSD's standard conditions of approval; therefore, a negative declaration (ND) was prepared for the proposed Project. Based on the information in the IS/ND, the proposed Project would not result in any potentially significant environmental impacts, and no mitigation measures would be required. This document includes the public comments received on the IS/ND as well as LAUSD's responses to those comments.

Under the California Environmental Quality Act (CEQA) (Public Resources Code, Division 13, Sections 21000 et seq.) and the CEQA Guidelines (California Code of Regulations [CCR] Section 15000 et seq.), a lead agency has no affirmative duty to prepare formal responses to comments on an IS/ND. The lead agency, however, should have adequate information on the record explaining why the comments do not affect the conclusion of the IS/ND. In the spirit of public disclosure and engagement, LAUSD – as the lead agency for the Project – has responded to all written comments submitted during the 30-day public review period.

1.3 RESPONSE TO COMMENTS DOCUMENT FORMAT

This document is organized as follows:

Section 1, Introduction. This section describes CEQA requirements and the content of this document.

Section 2, Response to Comments. This section provides a list of agencies and interested persons commenting on the IS/ND, copies of comments received during the public review period, and individual responses to written comments. To facilitate review of the responses, each comment has been reproduced and assigned an alphabetical letter. Individual comments have been provided, followed by responses from LAUSD with references to the corresponding comment number.

1.4 CEQA REQUIREMENTS REGARDING COMMENTS AND RESPONSES

CEQA Guidelines Section 15204(b) outlines parameters for submitting comments on NDs and reminds persons and public agencies that the focus of review and comment should be “on the proposed findings that the project will not have a significant effect on the environment.” If the commenter believes that the project may have a significant effect, they should: (1) identify the specific effect; (2) explain why they believe the effect would occur; and (3) explain why they believe the effect would be significant.

Comments are most helpful when they suggest additional specific alternatives or mitigation measures that would provide better ways to avoid or mitigate the significant environmental effects. At the same time, reviewers should be aware that the adequacy of an ND is determined in terms of what is reasonably feasible. CEQA Guidelines Section 15204(c) advises, “[re]viewers should explain the basis for their comments, and should submit data or references offering facts, reasonable assumptions based on facts, or expert opinion supported by facts in support of the comments. Pursuant to Section 15064, an effect shall not be considered significant in the absence of substantial evidence.”

CEQA Guidelines Section 15204(d) also states, “[e]ach responsible agency and trustee agency shall focus its comments on environmental information germane to that agency’s statutory responsibility.” CEQA Guidelines Section 15204(e) states, “[t]his section shall not be used to restrict the ability of reviewers to comment on the general adequacy of a document or of the lead agency to reject comments not focused as recommended by this section.”

Finally, CEQA does not require a lead agency to conduct every test or perform all research, study, and experimentation recommended or demanded by commenters. Written responses to comments are not required; however, it is LAUSD’s policy to respond in writing to all comments. When responding to comments, lead agencies need only respond to potentially significant environmental issues and do not need to provide all information requested by reviewers, as long as a good faith effort at full disclosure is made in the environmental document.

1.5 PUBLIC ENGAGEMENT

Notice of Intent to Adopt a Negative Declaration (ND). Per CEQA Guidelines Section 15072 and 15073, LAUSD determined that an ND would be appropriate for the Project and circulated a Notice of Intent to Adopt a Negative Declaration (NOI) and the IS/ND. The public review period for this CEQA-compliant document was from May 7, 2025 to June 6, 2025. Public outreach included the following methods:

1.5.1 Newspaper Publications

- NOI published in the legal announcement section of the Daily News (English) on May 10, 2025.
- NOI published in the legal announcement section of the La Opinión (Spanish) on May 5, 2025.

1.5.2 Mailings

- NOI sent to eight State and local agencies, five elected officials, the Los Angeles Registrar-Recorder / County Clerk, and the State Clearinghouse.
- NOI sent to student / parent guardian addresses and all addresses within a 0.25-mile radius of the Project site – 6,500 mailings.

1.5.3 Document Availability

The NOI and IS/ND were available for review at the following locations:

- Fairfax High School (Main Office) (7850 Melrose Avenue, Los Angeles, California 90046)
- LAUSD Office of Environmental Health and Safety, 333 South Beaudry Avenue, 21st Floor, Los Angeles, CA 90017 (by appointment)
- LAUSD Office of Environmental Health and Safety website (<https://www.lausd.org/ceqa>)
- California State Clearinghouse (<https://ceqanet.lci.ca.gov/>)

1.5.4 Community Outreach

A virtual public meeting was held via Zoom on May 22, 2025 at 6:00 PM. The meeting provided agencies and the public with an opportunity to comment on the Project and the IS/ND. The meeting included a presentation of the proposed Project, a summary of findings for CEQA and the Preliminary Environmental Assessment-Equivalent (PEA-E), and a question and answer (Q&A) session. During the Q&A session, commenters had inquiries on the following topics:

- Design (including questions regarding the architect selection process, classroom and support spaces, Americans with Disabilities Act of 1990 (ADA) improvements, parking, athletics facilities, landscaping etc.)
- Construction (including questions regarding schedule, safety precautions, traffic control, interim housing)
- Public engagement process

Those comments that were received (listed above) were addressed by LAUSD during the meeting. No other formal comments were received via letter or e-mail from community members. Additionally, none of the Zoom comments pertained to the adequacy of the environmental analyses contained in this IS/ND. As such, pursuant to CEQA Guidelines Section 15204(b), Zoom comments from the May 22, 2025 meeting are not included in this document and do not warrant additional written responses.

1.6 NEED FOR RECIRCULATION OF AN IS/ND PRIOR TO ADOPTION

Section 15073.5(a) of the CEQA Guidelines states that a lead agency is required to recirculate an IS/ND if the document must be substantially revised after public notice of its availability has previously been given pursuant to Section 15072, but prior to its adoption. Notice of recirculation must comply with Sections 15072 and 15073. A “substantial revision” of the IS/ND refers to when:

1. A new, avoidable significant effect is identified and mitigation measures or project revisions must be added to reduce the effect to less than significant.
2. The lead agency determines that the proposed mitigation measures or project revisions will not reduce potential effects to less than significant, and new measures or revisions are required.

Recirculation is not required under the following circumstances:

1. Mitigation measures are replaced with equal or more effective measures pursuant to CEQA Guidelines Section 15074.1.
2. New project revisions, which are not new avoidable significant effects, are added in response to written or verbal comments on the project effects identified in the negative declaration.
3. Measures or conditions of project approval are added after circulation of the negative declaration that are not required by CEQA, do not create new significant environmental effects, and are not necessary to mitigate an avoidable significant effect.
4. New information is added to the negative declaration which merely clarifies, amplifies, or makes insignificant modifications to the negative declaration.

As a result of the comments received the District has determined that no revisions to the IS/ND are necessary and the requirements in CEQA Guidelines Section 15073.5 are not met and that recirculation of the IS/ND is not required. The analysis and conclusions in the IS/ND demonstrate substantial evidence in light of the whole record that the Project would not have a significant effect on the environment.

2. Response to Comments

This section provides all written comments received on the IS/ND and LAUSD’s response to each comment.

Table 1
Summary of Comments Received

Reference	Commenting Person / Agency	Date of Comment	Page Number
Written Comment Letters			
A	LA County Metropolitan Transportation Authority	May 27, 2025	5
B	Department of Toxic Substances Control	May 15, 2025	8

COMMENT A – Justin Klaparda, LA County Metropolitan Transportation Authority (Metro) (2 pages)



May 27, 2025

Christy Wong, CEQA Project Manager
Los Angeles Unified School District
Office of Environmental Health and Safety
333 South Beaudry Avenue, 21st Floor
Los Angeles, CA 90017
Email: CEQA-comments@lausd.net

RE: Fairfax High School Major Modernization Project – 7850 Melrose Avenue Los Angeles, CA 90036
Notice of Intent to Adopt a Negative Declaration and Notice of Public Comment Period for Preliminary Environmental Assessment

Dear Christy Wong:

The purpose of this letter is to outline recommendations from Metro concerning issues that are germane to our agency's statutory responsibility in relation to the Metro Bus facilities and services, which may be affected by the proposed Project. In addition to the specific comments outlined below, Metro would like to provide the Project Sponsor the Metro Adjacent Development Handbook (attached), which provides an overview of common concerns for development adjacent to Metro bus stops and right-of-way (ROW). This document and additional resources are available at <https://www.metro.net/devreview>.

Project Description

The proposed Project is designed to address the most critical physical concerns of the buildings and grounds at Fairfax HS through building replacement, renovation, and modernization to provide facilities that are safe, secure, and better aligned with the current instructional program.

The proposed Project includes demolition of the existing Shop Building, Gymnasium, Utility Building, Ticket Office, and Relocatable Sanitary Building, and the construction of a new gymnasium, specialty classrooms, outdoor physical education courts, maintenance and operations facilities, and an Art Gallery Building. The proposed Project also includes exterior painting of existing buildings; various landscape and hardscape improvements; parking improvements; infrastructure upgrades including, but not limited to, sanitary sewer, water, storm water, and electrical utilities; and accessibility upgrades as required.

Metro Comments

- 1. Bus Services: Metro Bus Lines 10, 48, 217, and 218 operate on Fairfax Ave, adjacent to the Project. One Metro Bus stop is directly adjacent to the proposed Project at Fairfax and Melrose. Other transit operators may provide service in this area and should be consulted.

A-1

Fairfax High School Major Modernization Project – 7850 Melrose Avenue Los Angeles, CA 90036
 Notice of Intent to Adopt a Negative Declaration and Notice of Public Comment Period for Preliminary
 Environmental Assessment– Metro Comments
 May 27, 2025

- | | |
|---|-----|
| <p>2. <u>Final Bus Stop Condition</u>: The existing Metro bus stop must be maintained as part of the final Project. During construction, the stop must be maintained or relocated consistent with the needs of Metro Bus operations. Final design of the bus stop and surrounding sidewalk area must be ADA-compliant and allow passengers with disabilities a clear path of travel to the bus stop from the proposed development.</p> | A-2 |
| <p>3. <u>Bus Stop Access & Enhancements</u>: Metro encourages the installation of bus shelters with benches, wayfinding signage, enhanced crosswalks and ramps compliant with the Americans with Disabilities Act (ADA), as well as pedestrian lighting and shade trees in paths of travel to access bus stops and other amenities that improve safety and comfort for transit riders. The City should consider requesting the installation of such amenities as part of the development of the site.</p> | A-3 |
| <p>4. <u>Driveways</u>: Driveways accessing parking and loading at the Project site should be located away from transit stops, and be designed and configured to avoid potential conflicts with on-street transit services and pedestrian traffic to the greatest degree possible. Vehicular driveways should not be located in or directly adjacent to areas that are likely to be used as waiting areas for transit.</p> | A-4 |
| <p>5. <u>Bus Operations Contacts</u>: Please contact Metro Bus Operations Control Special Events Coordinator at 213-922-4632 and Metro's Stops and Zones Department at 213-922-5190 with any questions and at least 30 days in advance of initiating construction activities. Other municipal buses may also be impacted and should be included in construction outreach efforts.</p> | A-5 |

If you have any questions regarding this response, please contact me by phone at 213.418.3484, by email at DevReview@metro.net or by mail at the following address:

Metro Development Review
 One Gateway Plaza, MS 99-22-2
 Los Angeles, CA 90012-2952

Sincerely,

Justin Klaparda

Justin Klaparda, AICP
 Senior Transportation Planner
 Transit Oriented Communities

Attachment and link:

- Adjacent Development Handbook: <https://www.metro.net/devreview>

A. Response to Comments from Justin Klaparda, Metro, dated May 27, 2025

- A-1 The proposed Project does not involve modifications to the public right-of-way, including Fairfax Avenue or Melrose Avenue, and no permanent or temporary relocation of bus stops is proposed (refer to Section 3.2.2, *Site Access, Circulation, and Parking*). Construction activities would occur within the school property and would be phased to maintain safe and efficient campus operations. LAUSD will coordinate with the City of Los Angeles and relevant transportation agencies regarding construction-related traffic control and will notify Metro and other transit operators in advance of any activities that could affect transit service or access. The IS/ND concludes that no significant impacts to public transit are anticipated as a result of the proposed Project.
- A-2 The proposed Project would not modify the public right-of-way, including the sidewalk or bus stop area at Fairfax Avenue and Melrose Avenue. As defined in the project description and analysis of the IS/ND no changes to pedestrian circulation, public transit infrastructure, or off-site improvements are included as part of the proposed Project (refer to Section 3.2.2, *Site Access, Circulation, and Parking*). During construction, LAUSD will coordinate with the City of Los Angeles Department of Transportation (LADOT) and Metro to ensure that the existing bus stop adjacent to the Project Site is either maintained in its current location or temporarily relocated in a manner that maintains safe and functional transit operations. Any temporary relocation or construction-related access changes will comply with all applicable regulations, including Americans with Disabilities Act (ADA) requirements, to ensure a clear and accessible path of travel for all transit riders, including individuals with disabilities.
- A-3 The Project would not require the permanent relocation or rebuilding of any bus stops and therefore would not make any improvements to or install any amenities to existing bus stops. LAUSD will coordinate with LADOT and Metro during final design and construction planning to ensure safe and accessible pedestrian connections to the campus and adjacent transit stops.
- A-4 The proposed Project would not modify existing vehicular access points or alter driveway locations along Melrose Avenue or Fairfax Avenue. The Project would be required to comply with SC-T-2, which states that vehicular access and parking shall comply with Vehicular Access and Parking guidelines of the School Design Guide. One of the elements of the School Design Guide deals with vehicular access and pedestrian safety. Additionally, development of the proposed Project is confined to improvements within the existing campus and maintains the current circulation layout (refer to Section 3.2.2, *Site Access, Circulation, and Parking*).
- A-5 The proposed Project would be constructed entirely within the existing school campus and is not expected to directly impact transit stops or routes. However, LAUSD will coordinate with LADOT and Metro during the planning and construction phases to ensure that Metro and other affected transit operators are notified in advance of any activities that could potentially impact transit access, operations, or infrastructure.

COMMENT B – Tamara Purvis, Department of Toxic Substances (DTSC) (3 pages)



Yana Garcia
Secretary for
Environmental Protection



Department of Toxic Substances Control

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Gavin Newsom
Governor

SENT VIA ELECTRONIC MAIL

May 15, 2025

Christy Wong
CEQA Project Manager
Los Angeles Unified School District
333 S Beaudry Avenue, 21st Floor
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RE: NEGATIVE DECLARATION FOR THE FAIRFAX HIGH SCHOOL MAJOR
MODERNIZATION PROJECT DATED MAY 8, 2025, STATE CLEARINGHOUSE
NUMBER [2025050380](#)

Dear Christy Wong,

The Department of Toxic Substances Control (DTSC) reviewed the Negative Declaration (ND) for Fairfax High School Major Modernization Project (Project). The proposed Project includes demolition of the existing Shop Building, Gymnasium, Utility Building, Ticket Office, and Relocatable Sanitary Building, and the construction of a new gymnasium, specialty classrooms, outdoor physical education courts, maintenance and operations facilities, and an Art Gallery Building. The proposed Project also includes exterior painting of existing buildings; various landscape and hardscape improvements; parking improvements; infrastructure upgrades including, but not limited to, sanitary sewer, water, storm water, and electrical utilities; and accessibility upgrades as required. DTSC recommends and requests consideration of the following comments:

1. If the district plans to use California Department of Education (CDE) State funds for the project, then the district shall comply with the requirements of Education Code (EDC), [§17210](#), [§17213.1](#), and [§17213.2](#), unless otherwise

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Christy Wong
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specifically exempted under section [§17268](#). If the district is not using CDE State funds for the project, or is otherwise specifically exempt under section [§17268](#), DTSC recommends the district continue to investigate, clean up the Site under the oversight of Los Angeles County and in concurrence with all applicable DTSC guidance documents, if necessary. For more information on the CDE State funding, please visit the [Office of Public-School Construction](#) webpage.

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Cont.

A local education agency may also voluntarily request the CDE site/plan approval for locally funded site acquisitions and new construction projects. In these cases, CDE will require DTSC to review and approve prior to its final approval, except when exempt under section 17268.

2. DTSC recommends that all imported soil and fill material should be tested to assess any contaminants of concern meet screening levels as outlined in [DTSC's PEA Guidance Manual](#). Additionally, DTSC advises referencing the [DTSC Information Advisory Clean Imported Fill Material Fact Sheet](#) if importing fill is necessary. To minimize the possibility of introducing contaminated soil and fill material there should be documentation of the origins of the soil or fill material and, if applicable, sampling be conducted to ensure that the imported soil and fill material are suitable for the intended land use. The soil sampling should include analysis based on the source of the fill and knowledge of prior land use. Additional information can be found by visiting [DTSC's Human and Ecological Risk Office \(HERO\) webpage](#).

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DTSC appreciates the opportunity to comment on the Neg Dec for Fairfax High School Major Modernization Project. If you would like to proceed with DTSC's school environmental review process, please visit [DTSC's Evaluating & Clean-up School 3-Step Process to begin a Phase I Environmental Site Assessment](#). If you have any questions or would like clarification on DTSC's comments, please respond to this letter or via our [CEQA Review email](#) for additional guidance.

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Sincerely,

Tamara Purvis

Tamara Purvis
Associate Environmental Planner
HWMP - Permitting Division – CEQA Unit
Department of Toxic Substances Control
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cc: (via email)

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B. Response to Comments from Tamara Purvis, DTSC, dated May 15, 2025

- B-1 Education Code Sections 17210, 17213.1, and 17213.2 require a district to perform a Phase I Environmental Site Assessment for project work receiving state funds and details other, similar responsibilities. LAUSD has completed environmental investigations consistent with applicable requirements for school construction and modernization projects. As described in Section 4.9: *Hazards and Hazardous Materials*, in the IS/ND, the Phase I Environmental Site Assessment (Appendix F) and Preliminary Environmental Assessment – Equivalent (PEA-E, Appendix J) was prepared for this Project. the IS/ND acknowledges the potential presence of contaminants in the soil related to historical use of the site. The proposed Project includes Standard Conditions of Approval (SCs), specifically, SC-HAZ-4, as stated in Section 4.9 *Hazards and Hazardous Materials*, which require soil testing and remediation procedures in the event that previously unidentified contamination is encountered during construction. Contaminated soils, if identified during ground-disturbing activities, would be removed and properly managed in accordance with applicable federal, state, and local regulations, including oversight by appropriate regulatory agencies.
- B-2 Any soil that is imported or exported will be tested in accordance with the specific written procedures in LAUSD Specifications, Section 01 4524, Environmental Import/Export Materials Testing. This specification has the requirements for the sampling, testing, transporting, and certifying of imported fill materials or exported fill materials from school sites.